



POLICE DEPARTMENT

August 1, 2014

MEMORANDUM FOR: Police Commissioner

Re: Detective Arthur Molnar
Tax Registry No. 904600
Warrant Section
Disciplinary Case No. 2013-10592

The above-named member of the Department appeared before me on June 25, 2014, charged with the following:

1. Said Detective Arthur Molnar, on or about May 24, 2012, at approximately 0700 hours, while assigned to the [REDACTED] Warrants Division and on duty, [REDACTED], engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he entered said apartment without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT –
PROHIBITED CONDUCT

The Civilian Complaint Review Board (CCRB) was represented by Vivian Cedeno, Esq., Respondent was represented by Michael Lacondi, Esq.

Respondent through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The CCRB's Case

CCRB called Tanisha Peterson, Ethan D'Angelo and Detective Jaime Rosado.

Tanisha Peterson

Peterson testified that she is 37 years old. She works with autistic children at New York Family for Autistic Children where she is a Residential Specialist. Peterson said that she helps individuals with their daily living skills. She has worked there for five years.

On May 24, 2012, she was living at [REDACTED]. Her name is on the lease. At some time between 6:30 a.m. and 7:00 a.m., she had been sleeping in her bedroom. Also present in the apartment at that time was her husband and her foster daughter, Person A, [REDACTED].

Peterson also knows Person B [REDACTED]. Person B is also Person A's brother. Peterson said that the last time she saw Person B was three years ago when her grandmother passed away.

That morning, she had been sleeping. Person A had been sleeping on a couch in the living room. Peterson heard banging on the door and Peterson said, "I didn't get up at the first initial bang. I jumped up at the second sound of the noise. Once I jumped up, I proceeded down to the front door."

At the door, she looked through the peephole and saw two police officers. They were in plain clothes but she knew they were officers because they displayed their badges. Peterson said she then opened the door two to three inches and asked the officers if she could help them.

An officer, who she later learned was Respondent because he gave her his card, asked her name. Peterson said:

After I gave Tanisha Peterson, he proceeded to push the door. Once he pushed the door, I was pushed back. And once over the threshold, he asked my other name.

She further described what happened as a "push" and a "push in." After pushing the door, Peterson said Respondent asked for her other name at which she gave her maiden name, Tanisha Lawton.

Peterson testified that Respondent did not ask if he could come in before entering the apartment. After he entered, Peterson said, Respondent mentioned that he had a warrant for Person A.

Peterson denied that she ever invited Respondent or that she gave him permission or authority to enter her apartment.

Peterson stated that when Respondent mentioned Person A she pointed to the couch and said that Person A was right there. Peterson testified that Person A was on the couch sleeping.

Another officer, she said, woke Person A up and Respondent, who had been the first officer in the apartment, spoke with her "throughout."

Peterson said about six officers entered her apartment. She said she recognized one in the living room and the rest proceeded to the back of her apartment where the bedrooms are.

Peterson said that she overheard the conversation between Respondent and Person A. During that conversation she said Respondent asked Person A for the whereabouts of her brother, Person B. She said she did not know where he was. Peterson stated that Respondent said it was a long weekend and that he could have her locked up for "bull crap."

Peterson said that Respondent asked her to follow him to the bedroom and he pulled out a picture of Person B and asked if she knew where he was. She told him she did not and had not seen him in three years.

Peterson said that Respondent then gave her his business card [Civilian Complaint Review Board Exhibit (CCRBX) 1]. Several photographs depicting the layout of the apartment were also placed in evidence (CCRBX 2, 3, and 4). It was noted that the couch in the pictures was not where it was on the morning of the incident. Peterson testified that on that morning, the couch had been where a table is now depicted and that it blocked the kitchen area.

Peterson said that Respondent never placed handcuffs on Person A or attempted to execute the warrant in any way. She said Person A was covered with a blanket and was only wearing her undergarments.

Peterson also identified a CD as containing the statement made by Person A to CCRB, which she had listened to and verified Person A's voice on it.

On cross-examination, Peterson agreed that her hallway is like a railroad style apartment. She agreed that from the door down the hallway led first to the living room, then her daughter's room, then her son's room, which she said is around the corner. She agreed that her bedroom is all the way in the back.

Peterson agreed that she could hear the officers banging on her door from her bedroom. Peterson agreed that Ruff was such a deep sleeper that she did not wake up even though the couch was right against the door. She agreed that even though the officers were banging on the door so loudly that she could hear them in the back, Person A remained asleep. Peterson agreed that Person A had been right against the door.

Peterson confirmed that six officers came into her apartment. She agreed that she had only seen two officers when she had looked through the peephole. She denied that she had let the officers into her apartment.

Peterson agreed that her sister works for CCRB as an investigator. Peterson denied talking to her prior to contacting CCRB. Peterson denied talking to her sister about this incident. Peterson denied that her sister told her how to make a formal complaint and she denied that her sister talked to her about her work at CCRB. Peterson agreed that Person A had permission to open the door to her apartment.

On re direct examination, Peterson indicated that Person A's whole body, including her head, was covered by a blanket on the couch. She said that Person A is 20 years old. Peterson made her complaint to CCRB by calling 311. She denied that her sister gave her any assistance and she again confirmed that she opened the door on the morning of the incident.

Ethan DeAngelo

DeAngelo is a senior investigator in the administrative processing unit of CCRB. He has been with CCRB for almost two years.

On June 12, 2014, he had met with Peterson and Person A at Peterson's apartment. At that time, he played the audio of Peterson's statement to CCRB and Person A's telephone interview with CCRB for them. Person A acknowledged the statement as her own. On cross examination DeAngelo agreed that Person A's statement was not taken under oath. Person A's statement was received in evidence as CCRBX 5 and 5A.

Summary Of the relevant portions of the statement of Person A

Person A was the subject of a telephone interview on August 13, 2012 by CCRB investigator Catherine Twigg. In the interview Twigg stated that she had been talking to Peterson about the incident. Person A indicated that she still lived in the same apartment. Person A stated that it was about 6:00 a.m. and everyone was sleeping. She said they pulled to covers off of her and that she hardly had anything on because she was sleeping. They told her they had a warrant for her arrest. They then started showing her pictures of her brother and if she knew where he was. Person A said, "So, me and my brother, we don't speak like that, because he's not here."

Person A said they told her that if she did not get in touch with them by the end of the day and let them know where her brother is they were going to come back and pick her up. She said they did not take her and that they left it at that and that she never heard from them again.

Person A said that, "they went in the back, they checked everything, everywhere. Flashing flashlights all in Peterson's kid's face, my kid's face. Waking them up, waking them up, basically, come on, it's 6:00 in the morning, y'all have no respect."

Person A said that she had been lying on the couch and had fallen asleep watching a movie. When asked what first woke her up, Person A said, "They woke me up when they snatched the covers off of me." She further agreed that the officers were already inside the apartment when she woke up.

When asked how the officers got in, Person A said, "They were banging on the door, then Peterson must have heard it. And she went to the door, answered it, and they just bum rushed in after that." Person A said there were three officers that came to her and were talking to her.

She said they went to check the back room, "like the closets, under the bed and everything. Under the mattress." Person A said she witnessed this herself because during the search she got up, went to her room and put clothes on.

Person A was asked if Respondent asked her for a telephone number. At first she said yes but then recalled that he gave his business card to Peterson which has his number on it.

Twigg and Person A then endeavored to schedule an interview in Twigg's office.

Detective Jaime Rosado

Rosado is a detective assigned to the [REDACTED] Warrant Squad. On May 24, 2012 between 6:30 a.m. and 7:00 a.m., he was at [REDACTED]. He was present with Respondent and Detective Peter Duva. Respondent was the lead

investigator. Respondent knocked on the door and a female black answered. Rosado stated that the woman was "young." After looking at the transcript of his interview, he agreed that the woman was about 5' 7" in her thirties. He did not hear the conversation between Respondent and the female.

Rosado agreed that he and Respondent entered the apartment. Asked if there was anyone in the living room when he entered the apartment, Rosado stated there was no one there "initially." When asked if he remembered seeing a female on the couch, Rosado stated that the female on the couch was the same female who answered the door. He stated that she sat there when they conducted the interview.

When asked again about seeing a female on the couch Rosado stated, "Initially when we came in no. A female on the sofa was basically the female who we interviewed at the door and she sat down on the sofa."

Rosado was then asked if he recalled being interviewed by CCRB on February 12, 2013 in connection with this case. He did not recall the date but upon reviewing the transcript agreed he had been interviewed. He said he did not recall telling the CCRB investigators that there was another female on the sofa.

After reviewing the transcript, he agreed that he had said there were two women in the apartment.

After the Administrative Prosecutor read a portion of the transcript of the interview to the Court, Rosado was asked if he had told CCRB that there was a young black woman on the couch, Rosado stated that it was the same woman who had answered the door.

When asked by the Court what happened when they got to the door Rosado testified: "When we got to the door [Respondent] had the interview with the female. I guess the younger female was at the door. A few minutes later we went into the apartment. She let us in."

When asked who let them in Rosado answered, "The female at the door." When asked, "Then what happened?," Rosado testified: "She went to the sofa. She sat down. And that's when [Respondent] conducted his interview." When asked, "With whom?" Rosado stated, "With the female who opened the door. She was the only female right in that apartment at that time."

Rosado further stated that, "A few minutes into the interview, another female, an older female came from the back. A little belligerent. She was mad that there were cops in her apartment. [Respondent] explained to her why we were there. He told them he was looking for someone. A few moments went by, he finished his interview. He left his card. If they have any questions, you call back with information and we left."

On questioning by the Court, Rosado said the female who came out angry was about 50 years of age. (After further discussion about the context of questions in the transcript it was admitted into evidence as CCRBX 6 for CD of the audio interview and CCRB 6A for the transcript.)

On questioning by Respondent's counsel, Rosado confirmed that the incident occurred on May 24, 2012 and that his interview with CCRB was on February 12, 2013, about nine months after the incident. Rosado further confirmed that it was not his investigation and that in that period of time, he had executed hundreds of warrants. He agreed that when he went to CCRB, he did his best to recall the events. He agreed that

the woman who had the warrant was the woman who opened the door. He agreed that during the CCRB interview, no names had been used and the women were never referred to as Woman One and Woman Two. He repeated that he was with two other officers. He agreed there had been no search of the apartment.

When asked how did he know that there was a woman sleeping on the couch, Rosado responded that, "When she sat down there was a blanket and pillow right next to her that she grabbed." He confirmed that when she opened the door there was only one person in the living room and that is the person who let them in. He heard no objection to letting them in.

On further questioning by the Administrative Prosecutor, Rosado agreed that he had not heard the conversation between Respondent and the female at the door and that he did not know how Respondent gained access to the apartment.

Rosado also agreed that he had been notified to come to CCRB several weeks prior to the trial. He stated that he met with DeAngelo and the prosecutor. He denied that he refused to speak to them, stating that when he arrived, he was ready to talk to them. He agreed that he wanted representation. He then stated: "I remember my representation present and I was ready to speak and you guys walked away from me. That's what I do remember."

Rosado denied that he refused to speak to the Administrative Prosecutor. On further questioning by the attorney for Respondent, Rosado stated that he was not on the schedule at the CCRB office and that he waited and that he never got interviewed. Rosado denied making a decision not to be interviewed.

Rosado denied seeing a woman sleeping on the couch.

Summary of the CCRB interview of Detective Jaime Rosado

Rosado was interviewed by CCRB investigator Catherine Twigg on February 12, 2013. Also present was Patrol Benevolent Association union representative Robert Alanzi and CCRB Investigator Jen Jarrett.

Rosado indicated that on the date of the incident, he was working in the [REDACTED] [REDACTED] Warrant Squad, Violent Felony Squad. He was working with Respondent and Duva, and they were dressed in plainclothes. At approximately 6:30 a.m., they went to the apartment [REDACTED]. Respondent, who was the lead investigator on the case, briefly spoke with the woman who answered the door. The woman was possibly in her 30s. Rosado did not recall what Respondent and the woman said to each other. The woman opened the door, and Rosado understood this to mean that the woman was inviting the detectives into the apartment. There was no argument from the woman about the three detectives entering.

Once inside, Respondent noticed a woman sleeping on the couch. Respondent already knew the woman's name, and he proceeded to have a conversation with her. Rosado described her as being young, between the ages of 17 and 25. While Respondent conducted the interview in the living room, Rosado stood in the vestibule by the doorway but at one point peeked his head into the adjoining kitchen to make sure nobody else was there. A full search of the apartment was not conducted, as none of the detectives went to the bedroom area at the rear of the apartment. Rosado, who remained focused on ensuring nobody approached from the back of the apartment, did not hear the conversation that Respondent had with the woman on the couch. Respondent left his card with the woman, and the detectives left. The detectives spent 15 to 20 minutes

inside the apartment, and at no point did Rosado see anyone other than the two women: the one who answered the door and the one on the couch. Rosado was unable to identify either of the women by photograph.

Rosado did not know the specifics of the case that brought them to the [REDACTED] apartment, but Respondent told him beforehand that the suspect might have family members there that he wanted to interview.

The Respondent's Case

Respondent testified in his own behalf.

Respondent

Respondent, a 21-year member of the Department, is assigned to the [REDACTED] Warrant Squad. He went to the apartment [REDACTED] on the morning of May 24, 2012 in search of Person B for an assault in the first degree shooting case that he was investigating. Respondent explained that his investigation led him to the apartment, as Person B had family members there and was possibly residing there himself.

Respondent knocked on the door, and a woman opened it for him. Respondent displayed his shield. When asked her name, the woman identified herself as Person A. Respondent knew that Person A was Lawton's sister. He was surprised to see Person A because during his investigation he had learned that Person A was the subject of an arrest warrant. He did not know exactly what the warrant was for, but it was likely for an

unpaid summons. He informed Person A that there was a warrant out for her and that he needed to speak with her. Person A opened the door for Respondent to enter.

Respondent walked two or three or possibly four steps into the apartment and spoke to Person A sat on the couch, where there were pillows and blankets. Respondent advised Person A that because of the warrant he could take her into custody, and he asked her about her brother. Person A told Respondent that she had not seen Person B and did not know where he was, but she could possibly attempt to find him. Respondent asked Person A to do her best to locate Person B. He also told her that if he did not hear back from her, he would return to the apartment and arrest her on the warrant unless she took care of it.

During the conversation with Person A, another woman came into the room from the back hallway. This other woman was very upset that Respondent was in her apartment. The woman was yelling, and Respondent told her to relax. He told her the reason he was there and that he was not arresting Person A. The woman calmed down. Respondent left his card with Person A.

Respondent testified that he did not go to the apartment for Person A. In fact, he did not know beforehand that she was even going to be there. When Person A opened the door, there was nobody else in the living room. There were two other detectives with Respondent. He explained that these other detectives just stood there, though one of them might have backed up into the hallway during the interview with Person A. Respondent did not search the residence or obtain any evidence inside the apartment.

On cross-examination, Respondent confirmed that he had neither an arrest warrant nor search warrant for Person B. Respondent did not have a search warrant for

Person B but he had an ICard for him. Respondent got the address [REDACTED] from the management office of a building where Person B used to live. The management office told Respondent that the [REDACTED] apartment was one of several locations where the Person B family was known to hang out. Though background checks revealed that Person A was known to reside at the [REDACTED] apartment, Respondent did not know that she would be there when he knocked on the door. He reiterated that he did not expect her to be there. He never documented in his investigative file that he knew Person A lived in the apartment, and he actually had noted in his file another location on the same block as being an address for Person A.

Respondent reiterated that Person A opened the door to let him in. Person A stepped back into the apartment to let him enter. They were speaking at the time. He did not recall if Person A said "come in" or stated anything to him verbally. Respondent never specifically asked to enter. He went inside the apartment to conduct an interview of Person A. He did not go to the apartment with the intention of arresting her.

Respondent assumed that the reason Person A stepped back into the apartment was to let him in.

FINDINGS AND ANALYSIS

Respondent is charged in one specification with one act of misconduct: "entering an apartment without sufficient legal authority." There is no question that on May 24, 2012, at about 6:30 or 7:00 o'clock in the morning, Respondent knocked on the door of [REDACTED].

There are two quite different versions of what occurred after that. CCRB's main witness, Tanisha Peterson, claims that after she opened her door a few inches, Respondent pushed her door open, forcing her back as he stepped into the apartment without asking for or receiving permission.

Respondent claims that a different woman entirely, Person A opened the door for him. He asked her name and when she gave it, Respondent told her that he had a warrant for her and asked if they could speak. At that time, Respondent claimed, Person A opened the door and gestured for him to come in, which Respondent said he did.

Although Respondent acknowledged that Peterson came to the door and protested the fact that he had entered the apartment, he said that it was after Person A had let him in.

Obviously, one of these versions is simply untrue. Thus the fundamental factual issue that must be decided here involves an effort to determine, if nothing else, whether Peterson or Person A came to the door in response to the knocking.

The background of what occurred that morning is quite simple. Respondent, a member of the Warrant Squad, was working on the apprehension of Person B who was wanted as the alleged perpetrator in a first degree assault shooting. Peterson, whose maiden name was Lawton, [REDACTED], Person A, is Person B's sister and is also the foster child of Peterson.

The CCRB theory of what occurred, as set forth in the opening statement of the Administrative Prosecutor, is that Respondent entered the apartment on a ruse and that the warrant he had for Person A was a pretext to enter the apartment and search for Person B.

The evidence of that, the Administrative Prosecutor claimed, was that Person A was not handcuffed, not arrested, not returned to criminal court, not even taken into the

precinct. The Administrative Prosecutor and CCRB's main witness, Peterson, claimed that when they entered the apartment, the officers with Respondent (Peterson said there were six officers) fanned out through the apartment apparently looking for Person B.

The Administrative Prosecutor also points to the testimony of Peterson as supporting this theory. When asked what happened after Respondent had entered the apartment, Peterson testified: "After he asked me what was my second name, and I gave Tanisha Lawton he proceeded to say that he had a warrant for Person A. I pointed to the couch and I said well, Person A is right there."

Despite the fact that Respondent made clear that, at this trial, he was not using the execution of a warrant for Person A as the claimed basis for his entry into the apartment, a great deal of time, effort and pointed questioning went into debunking that line of defense.

As I have noted, the two main protagonists in this case, Peterson and Respondent, testified and gave different versions of who answered the door. Several other persons were present at the time of this incident. Detectives Rosado and Duva had accompanied Respondent to the location. Rosado testified at this trial and Duva¹ did not. No explanation was offered by either side for the failure to call him. Person A was also present in the apartment and participated in some fashion in the incident. Person A did not testify at this proceeding. The Administrative Prosecutor advised the Court that she had expected Person A to appear as a witness but that Person A had not shown up. On consent, a statement she made to a CCRB investigator over the phone was received in evidence.

¹ A Department telephone directory search shows that Detective Duva is still employed by the Department and is currently assigned to the Warrant Section.

Person A's CCRB statement supports Peterson's testimony in that Person A stated that she did not answer the door. In considering what weight to give this statement, I note that it was not made under oath. More significantly, Person A was not subject to any kind of cross examination, or for that matter, challenging questions, to test the veracity of her version of events.

Even before he was called to the witness stand, the Administrative Prosecutor asked that Rosado be considered as a hostile witness. There is no doubt that Rosado's trial testimony supported Respondent in that he said that the woman who answered the door was the same woman who had been sleeping on the couch. Without objection, almost all of the questioning of Rosado by the CCRB prosecutor was comprised of leading questions, which is the remedy available to a party who has called a hostile witness.

Ordinarily, a party calling a witness is deemed to vouch for the credibility of that witness, however it is clear that in this case, it would be unfair to deem that the CCRB is vouching for Rosado's trial testimony and in effect Rosado is being considered by this Court as someone who was "hostile" to the CCRB as that term is understood in the law of evidence.

Indeed, the CCRB attempted to discredit Rosado's trial testimony by claiming that it is inconsistent with a statement he previously made to CCRB. The specific issue involves who answered the door, Person A or Peterson.

During the trial I was unable, based on the questions asked, to determine if the prior statement was actually inconsistent. It was claimed that the questions posed by the Administrative Prosecutor were taking portions of that prior statement out of context. In

particular it was claimed that there was confusion, at the interview, as to which woman, Peterson or Person A, Rosado had been referring to in reference to specific questions. I took the entire statement in evidence for the purpose of determining if such confusion really existed. It did not.

A review of the audio recording of Rosado's CCRB interview along with the transcript, make clear that, at that interview, Rosado described the woman who opened the door and the woman was on the couch as two different women.

Among other things that make this clear is when he was asked during the CCRB interview, to describe the woman at the door, Rosado said "She could have been in her 30's." (CCRBX 6A, P. 9). A few moments later, he was asked to approximate the age of the woman lying on the couch and he stated, "She could have been between 17 and 25." (CCRBX 6A, P. 13)

The rule regarding a prior inconsistent statement is that it can be used to impeach the in-court testimony given by a witness. In a criminal case, the prior statement can only be used to impeach the witness and does not constitute evidence on its own, (see *Criminal Procedure Law* § 60.35 subd. 2). This is not a criminal matter and an exception to the hearsay rule seems to apply in civil cases, (see *Prince-Richardson on Evidence* §8 – 104). Moreover, in this administrative proceeding, hearsay is generally admissible.

In this case Rosado, in his testimony at trial, made no effort to explain the change in his testimony and seemed to be asserting that there was no inconsistency. Under those circumstances, I must reject Rosado's trial testimony and consider his prior statement as evidence.

This, however, does not resolve the matter as to the ability to make a finding about what actually happened on the morning of May 24, 2012. Rosado's statement indicates that whoever was at the door admitted them into the apartment. There is no testimony from him about Respondent having pushed his way into the apartment. He confirmed that there were three officers in total, not six. Additionally, he denied there was a search of the apartment. These statements directly contradict claims made by Peterson.

Person A's statement also raises credibility issues. In her statement, she insisted that she was asleep on the couch and that she was awakened after the officers had entered the apartment, yet she stated, in a manner that gives the impression she actually saw it, that the officers "bum rushed" Peterson to make the entry.

Person A, who said there were a total of three officers, described in detail a very thorough search of the apartment by all three of the officers. Person A said the officers went in the closets, searched under the beds and were shining flashlights in the eyes of her children and Peterson's children. The search was so intense and so prolonged that Person A said she got up and got dressed, while it was going on. This is in apparent contradiction to Peterson who said that after Respondent entered the apartment, he was with Person A speaking to her while she was on the couch "throughout." It should be noted that there is no charge involving a search of the apartment.

Peterson testified that six officers entered the apartment. Every other witness, including Person A, stated that there were a total of three officers. It would appear there were only three officers and not six, so Peterson's statement was an exaggeration.

These discrepancies lead me to question the accuracy and reliability of each of these witnesses.

As I have noted, Respondent was questioned vigorously on the issue of whether he came to the apartment with the purpose of executing a warrant against Person A. Had Respondent come to the apartment with reasonable belief that Person A was there, Respondent might have had a good faith basis, if not a legal basis to enter the apartment. Respondent therefore could have used this as his explanation for the entry; but he did not. His testimony was that he had not expected to find Person A there, something his CCRB questioner seemed to doubt. This tends, in my view, to add to his credibility rather than harm it.

Certainly having an outstanding warrant of the sister of the real subject of a police action seems like good preparation. Using it as a means to gain cooperation from that secondary individual also seems like good and appropriate police work. The Administrative Prosecutor seemed to complain that Person A was not arrested; this seems to me to be an odd complaint. The decision by Respondent not to arrest Person A in the hope of gaining her cooperation in locating Lawson, seems an appropriate use of discretion. On this point, the Administrative Prosecutor argued the following in her closing: And so if we allow [Respondent] to use a bench warrant like this, then that means he could come back whenever he wants. He could go to her house, enter under the pretext of a warrant, speak to whoever he wants to, not arrest that person, come back again and enter, because I have a warrant. Not arrest that person. And find out that person that's got the ICard.

To suggest that a not guilty finding would authorize some kind of improper conduct by officers in the future is to misunderstand the process.

The Administrative Prosecutor also seems to be complaining about the execution of warrants. It is the existence of the warrant that gives that power to the police and the citizen involved can remove that power by vacating the warrant. Respondent claimed that he explained to Person A how she could vacate the warrant. If Person A vacated the warrant by going to court on her own, the officer would have no power, as the Administrative Prosecutor put it, to “come back whenever he wants” or to “come back again and enter” or to use the warrant as a “pretext” for anything.

As I noted earlier, this is a case in which there is a stark contrast between what Peterson said occurred and what Respondent said occurred. There is no extrinsic evidence such as a video or audio recording to provide an independent basis for determining who answered the door, let alone whether the entry was on consent or the result of a “push-in.” These circumstances put me in a position, as fact finder of deciding who, Peterson or Respondent, is telling the truth and who, between them, is lying.

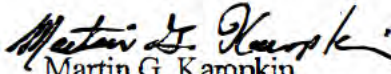
Based on my review of the evidence, there is not a sufficient basis upon which to reasonably and reliably make that conclusion. The CCRB has the burden of establishing the facts by a preponderance of the evidence. It has not, by that standard, established that Peterson is telling the truth and Respondent is lying. CCRB has thus not met its burden of proof.

There is one further issue. Respondent claims that he had non-verbal permission to enter the apartment. Clearly, verbal permission would have been better but conduct,

demeanor and gestures can and often do serve as effective means of communication. The actions Respondent described constitute easily recognizable and oft used behavior to convey consent for someone to enter a room or an apartment.

Based on all of the above, I find Respondent Not Guilty.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner - Trials

APPROVED

OCT 10 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER